

Authority for Personal Data
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 The Minister for Legal Protection
 P.O. Box 20301
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Date

February 13, 2024

Our reference

z2023-303011

Your letter of

December 18, 2023

Contact person

Your reference

5126297

Subject

Advice on the draft Whistleblower Regulation Judiciary

Dear Mr. Weerwind,

In a letter dated December 18, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft amendment to the Law on Judicial Organization, the Law on the Legal Status of Judicial Officers, the Professional Law, the Law on Administrative Jurisdiction in Business Organization, the Law on the Council of State, and the Law on the Protection of Whistleblowers in connection with the establishment of a whistleblower regulation for the judiciary (hereinafter: the draft).

Assessment of the personal data aspects of the draft gives the AP reason to make several comments.

Scope of the draft

The draft provides for a reporting possibility for suspicions of misconduct within the judiciary.¹ The draft aims to broaden the range of options for reporting suspicions of misconduct² in a safe manner and to further strengthen the independent judiciary.³ In doing so, it seeks to align with the existing (internal) complaint procedure for the judiciary.⁴

A report can be made to the Attorney General at the Supreme Court. He conducts a preliminary investigation and decides whether the report will be transferred for substantive handling to the Supreme Court. A similar arrangement is proposed for the Council of State.⁵ In the context of the report and any subsequent investigation, personal data will be processed. This is necessary for the processing purpose; to adequately handle and investigate reports. This may also involve special personal data or personal data of a criminal nature. Therefore, the draft provides a legal basis for processing such personal data.⁶

Reports that do not concern the performance of judges' duties can be submitted to the research department of the Whistleblower House. To the extent that a request has been submitted to the Whistleblower House by someone who works for or on behalf of the judicial organization, the report will be forwarded to the Attorney General at the Supreme Court or the Vice President of the Council of State. The draft provides a legal basis for the mutual exchange of personal data.⁷

Advice

Legal basis for processing special personal data

As noted, the draft creates a legal basis for processing special personal data. It utilizes the possibility provided by Article 9, paragraph 2, introductory phrase and under g, GDPR, to make an exception to

the prohibition on processing special personal data due to an overriding public interest. The explanatory memorandum accompanying the draft considers providing protection to whistleblowers who wish to raise potential misconduct as an overriding public interest.

The draft does impose conditions on the processing of special personal data. The text of the draft stipulates that processing is only possible if: '(...) it is provided with such safeguards that the personal privacy of the data subject is not disproportionately harmed.' However, the draft only requires that safeguards must be in place in the execution of the whistleblower task, not what those safeguards must be. The requirement for safeguards also follows - albeit in different wording - from Article 9, paragraph 2, introductory phrase and point g, of the GDPR itself: '(...) appropriate and specific measures are taken to protect the fundamental rights and interests of the data subject.'

The AP observes that the legislator essentially suffices with more or less adopting what is a substantive requirement under Article 9, paragraph 2, introductory phrase and point g, of the GDPR, which national legislation must meet for the processing of special personal data to be permissible. It is therefore

3 Explanatory memorandum accompanying the draft, p. 1.

4 Articles 13a to 13g of the Judicial Organization Act.

5 Provided that persons working at the Council of State can report to the Vice President of the Council of State. The Vice President can subsequently forward the complaint to the Administrative Jurisdiction Division of the Council of State after a preliminary investigation.

6 Article 13m, pertaining to Article I, Article III and IV as well as Article 7b, paragraph 8, pertaining to Article V, of the draft.

7 Article 13j, paragraph 4, pertaining to Article I and Article 7b, paragraph 4, pertaining to Article V, of the draft.

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It is up to the national legislator to provide concrete implementation of the requirement that there must be appropriate and specific measures. This implementation is necessary so that the risks for those involved are actually reduced and effective protection is provided against abuse.

The AP advises that the draft or possibly delegated legislation should include concrete appropriate and specific measures.

Personal data to be processed for a report

If someone wishes to report a suspected wrongdoing, this is done via a petition to the Attorney General at the Supreme Court or the Vice President of the Council of State. The whistleblower is required to provide the following (personal) data:⁸

- Name and address of the petitioner⁹
- Date
- Description of the alleged wrongdoing
- The grounds on which the suspicion is based

According to the explanatory memorandum accompanying the draft, in addition to this data, the court or public prosecutor where the whistleblower is employed, or for whom the whistleblower performs work, as well as the name and position of the persons to whom the report relates, must also be processed.¹⁰

The AP advises - with a view to clarity and predictability of the relevant legislative measure¹¹ - to also include the data that, according to the explanatory memorandum, must be provided (additionally) in the report in the text of the law.

Workload AP

The AP notes that the draft is not expected to necessitate additional efforts by the AP.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

8 Article 13i, second paragraph, pertaining to Article I and Articles III and IV as well as Article 7b, third paragraph, pertaining to Article V, of the draft.

9 Or of the confidant or the lawyer who submits the request on behalf of a whistleblower whose identity details are not disclosed.

10 Explanatory memorandum accompanying the draft, p. 10.

11 Recital 41 GDPR.